

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
LUIS ORTIZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOSEPH GREGORIO,
JOHN AND JANES DOES 1-3,

Defendants.

-----X

Index No.:

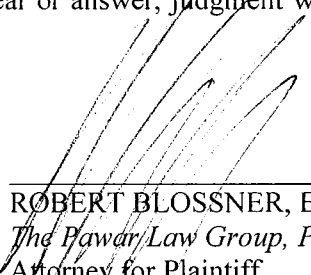
Date Filed:

SUMMONS

Plaintiff designates Bronx
County as the place of trial
Plaintiff resides at:
1721 Grand Avenue
Bronx, New York 10467

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff (s) Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is completed if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 8, 2018



ROBERT BLOSSNER, ESQ.
The Pawar Law Group, PC
Attorney for Plaintiff
Office & P.O. Address:
20 Vesey Street, Suite 1210
New York, NY 10007
Tel. No.: (212)571-0805

Defendants' Addresses:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, New York 10007

JOSEPH GREGORIO,
20th Precinct
120 W 82nd Street
New York, NY 10024

JOHN AND JANES DOES 1-3,
20th Precinct
120 W 82nd Street
New York, NY 10024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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LUIS ORTIZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOSEPH GREGORIO,
JOHN AND JAMES DOES 1-3,

Defendants.
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COMPLAINT

Jury Trial Demand

Venue: BRONX COUNTY

The plaintiff, ***LUIS ORTIZ*** by his attorney, **ROBERT BLOSSNER, ESQ.**, complaining of the defendants respectfully alleges, upon information and belief, as follows:

1. Plaintiff ***LUIS ORTIZ***, is an avid fisherman and a handyman.
2. Plaintiff ***LUIS ORTIZ*** makes a living doing work for other people and during the summer months taking people on fishing tours on his boat.
3. Plaintiff ***LUIS ORTIZ*** is a resident of the Bronx, County of Bronx, and State of New York.
4. Defendant ***CITY OF NEW YORK ("CITY")*** is a municipal corporation who oversees the NYPD.
5. Defendant ***JOSEPH GREGORIO*** is/was a NYPD detective at the time of the incident assigned to the 28th precinct.
6. Defendants ***JOHN and JANE DOES 1-3*** are/were NYPD officers at the time of the incident assigned to the 28th precinct.

7. On September 12, 2015, plaintiff ***LUIS ORTIZ*** was arrested by ***JOSEPH GREGORIO and JOHN and JANE DOES 1-3***.
8. At 6 a.m., on that date, defendants visited plaintiff's mother's home looking for plaintiff.
9. When plaintiff called the defendants, after learning about this inquiry, the defendants told him to get dressed and to come down for questioning.
10. Plaintiff did as he was told and went to see the defendants.
11. The Defendants instead of questioning plaintiff, arrested him for assaulting another individual with a chainsaw on September 10, 2015.
12. Plaintiff does not own a chain-saw and has never attacked anyone.
13. In fact, on the alleged date of the incident, plaintiff was not even in the borough of Manhattan where the alleged attack took place.
14. Defendants showed the complaining victim an old photograph of plaintiff from a prior arrest and conducted an illegal show-up to get the victim to point plaintiff as the perpetrator.
15. Defendants did not have any probable cause to arrest plaintiff.
16. Defendants did not have any other reason to suspect that plaintiff had committed the offense other than their illegal line-up.
17. Plaintiff spent 3 days in jail before he was able to post bond of \$15,000.00.
18. Plaintiff was ordered to remain in the state and away from the alleged victim whom he has never met.
19. Defendants ***JOSEPH GREGORIO and JOHN and JANE DOES 1-3***

lied and fabricated evidence and police paperwork to implicate plaintiff ***LUIS ORTIZ*** on the false charges.

20. Plaintiff ***LUIS ORTIZ*** had to appear in court on numerous occasions until the false charges against him were terminated in his favor.

AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest/Seizure under 42 U.S.C. 1983)

21. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

22. Defendants ***JOSEPH GREGORIO and JOHN and JANE DOES 1-3*** arrested plaintiff on false charges. They strip-searched him and held him for 3 days without probable cause.

23. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A SECOND CAUSE OF ACTION
(Malicious Prosecution/Denial of Fair Trial under 42 U.S.C. 1983)

24. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

25. Defendants ***JOSEPH GREGORIO and JOHN and JANE DOES 1-3*** falsified police documents and initiated criminal proceedings against the plaintiff.

26. Defendants ***JOSEPH GREGORIO and JOHN and JANE DOES 1-3*** knew that by forwarding the police documents to the DA's office, plaintiff would be prosecuted. They acted with malice because they did not have probable cause to even arrest plaintiff. They also falsified documents claiming plaintiff had sold drugs. All the criminal charges against the plaintiff were dismissed in his favor.

27. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A THIRD CAUSE OF ACTION

(Municipal Liability against the CITY)

28. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

29. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

30. The aforementioned customs, usages, and practices of the **CITY** included, but were not limited to, arresting, assaulting individuals suspected of crimes without due process. In addition, the **CITY** engaged in a custom or practice of inadequate screening, hiring, retaining, training, disciplining and supervising its employees, which was the moving force behind the violation of Plaintiff's rights as described herein.

31. In addition, the Defendant's superior officers whose duty it was to review and screen all arrests for propriety upon presentation by the officer seeking to make an arrest routinely ratified such arrests without questioning the facts underlying same.

32. Furthermore, the individual defendants have a practice and custom of ignoring the mandates of the patrol guide, which requires them to prepare several forms before, and after an arrest is made. As a result of the failure of the **CITY** to properly recruit, screen, train, discipline, and supervise its officers, including the individual Defendants, Defendants have tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein

33. Furthermore, police officers from the NYPD retain old photographs of arrestees and use them illegally to show victims of crime, in order to close out cases even when the photographs do not represent the actual perpetrator of the crime. These photographs and other documents are supposed to be sealed pursuant to Section 160.50 of the NYS penal Code. Yet, on numerous occasions, the NYPD officers retain them and use them for unlawful purposes. The NYPD has not mechanism set to train officers on how to destroy files, photographs and criminal court and arrest paperwork after a case has been dismissed and sealed. This lack of inaction is a *defacto* policy that led to violation of plaintiff's constitutional rights.

WHEREFORE, Plaintiffs demand judgment and pray for the following relief, jointly and severally, against the defendants:

(A) Full and fair compensatory damages in an amount Five Hundred Thousand Dollars for each and every cause of action for each plaintiff against defendants (individually or collectively) or as determined by a jury:

(B) Punitive damages in an amount to be determined by a jury:

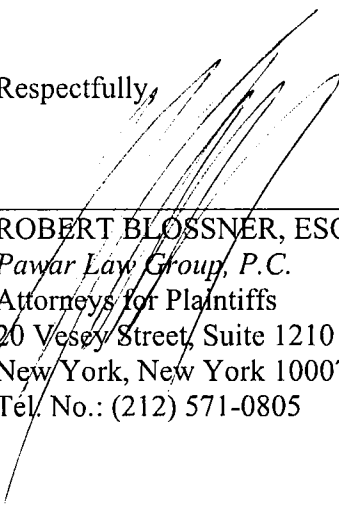
(C) Reasonable attorney's fees and the costs, expenses and disbursements of the action;

and

(D) Such other and further relief as appears just and proper.

Dated: New York, New York
March 5, 2018

Respectfully,



ROBERT BLOSSNER, ESQ.
Pawar Law Group, P.C.
Attorneys for Plaintiffs
20 Vesey Street, Suite 1210
New York, New York 10007
Tel. No.: (212) 571-0805